

Gudiya Devi v. State of U.P.

High Court of Judicature at Allahabad, Lucknow Bench · Division Bench · 27 June 2022 · WRIT - C No. - 3991 of 2022 · **Relegated to clause 6.5(b); recovery stayed**

HEADNOTE

Writ seeking correction of a domestic bill that demanded Rs.1,28,926, including arrears of Rs.1,26,731, against 33 units, when the April 2022 bill showed no arrears. Disposed of by sending the petitioner to respondent no.3 under paragraph 6.5(b) of the Electricity Supply Code, 2005, with recovery on the bill dated 13.06.2022 stayed for six weeks or until that decision.

FACTUAL SUMMARY

Gudiya Devi holds a domestic electricity connection. Earlier bills were for Rs.972, Rs.660 or Rs.380. The June 2022 bill recorded consumption of only 33 units and a current charge of Rs.421.50, but showed arrears of Rs.1,26,731 and a total of Rs.1,28,926. The April 2022 bill filed with the writ showed no arrears. She had written to the licensee's higher authorities seeking a bill on actual consumption, and alleged that one Rajnish Verma demanded illegal gratification and threatened disconnection and recovery. She sought a direction to stop the disputed billing.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5(b)

disputed bill with unexplained arrears

HOLDING

The writ is disposed of by directing the petitioner to file, within two weeks, an application under paragraph 6.5(b) of the Electricity Supply Code, 2005 before respondent no.3. If filed, respondent no.3 shall consider it and redress the grievance in accordance with law within three further weeks. Recovery on the disputed bill dated 13.06.2022 remains stayed for six weeks or until that decision. ¶ 7

PRINCIPLE TAGS

disputed-assessment-relegated-to-6.5(b)(ii) A domestic consumer disputing a June 2022 bill that added arrears of Rs.1,26,731 absent from the April bill was relegated to an application before respondent no.3 under paragraph 6.5(b); the writ court did not recompute the demand and stayed recovery pending that decision. ¶ 7

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ARREARS OF RS.1,26,731 IN THE BILL DATED 13.06.2022 WERE LAWFULLY RAISED WHEN THE APRIL 2022 BILL SHOWED NO ARREARS.

Left to respondent no.3 on an application under paragraph 6.5(b). ¶ 5-7

NOT DECIDED — THE ALLEGATION THAT RAJNISH VERMA DEMANDED ILLEGAL GRATIFICATION AND THREATENED DISCONNECTION.

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